

Shafakat Husain v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 January 2021 · Writ - C No. 26357 of 2020 · Writ - C No. 26357 of 2020 · **Writ disposed; petitioner relegated to clause 6.14; coercive action stayed.**

HEADNOTE

A writ challenging a DVVNL demand notice was disposed of without examining the merits. The consumer, who offered to pay in instalments, was given liberty to apply to the Executive Engineer under Clause 6.14 of the Electricity Supply Code, 2005 within two weeks; that officer is to consider the representation in accordance with law within four weeks, and no coercive action is to be taken on the demand in the meantime.

FACTUAL SUMMARY

The petitioner challenged a demand notice dated 25 November 2020 issued against him by the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Firozabad, and sought a mandamus restraining harassment in connection with that demand. He submitted that he was ready to deposit the outstanding amount in instalments. Counsel for the power corporation submitted that Clause 6.14 of the Electricity Supply Code, 2005 provides for payment of dues in instalments, and that the petitioner should approach the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment payment of electricity dues

HOLDING

Without entering the merits of the demand, a consumer willing to pay electricity dues in instalments may be relegated to Clause 6.14 of the Electricity Supply Code, 2005. The designated officer must consider a representation made within two weeks and pass an appropriate order in accordance with law within four weeks; meanwhile no coercive action is to be taken on the impugned demand. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The petitioner, ready to deposit the demanded amount in instalments, was directed to apply under Clause 6.14; the Executive Engineer is to consider that representation in accordance with law, with coercive recovery stayed in the meantime. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 25.11.2020

The Court expressly disposed of the writ without entering into the merits. ¶ 1